

26STCV09661 26STCV09661

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Case Number: 26STCV09661 Hearing Date: August 14, 2026 Dept: 514

McGhee v. Dignity Health

26STCV09661

Plaintiff's Motion to Compel Defendant Dignity Health to Provide Further Responses to Form Interrogatories – General (Set One)

Plaintiff's Motion to Compel Defendant Dignity Health to Provide Further Responses to Form Interrogatories – Employment Law (Set One)

Plaintiff's Motion to Compel Defendant Dignity Health to Provide Further Responses to Special Interrogatories (Set One)

Plaintiff's Motion to Compel Defendant Dignity Health to Provide Further Responses to Requests for Production (Set One)

Plaintiff's Motion to Compel Defendant Dignity Health to Provide Further Responses to Requests for Admission (Set One)

Tentative Ruling

The motions are denied without prejudice.

Background

This case arises out of an employment relationship.

On March 25, 2026, Emerson McGhee ("Plaintiff") filed the complaint in this action against Dignity Health ("Defendant"), St. Mary Medical Center Foundation, Commonspirit Health, and Does 1 through 10, asserting twenty-two causes of action, including, but not limited to causes of action under the Fair Employment and Housing Act (the "FEHA") and the Labor Code.

On April 30, 2026, Defendant filed an answer.

On July 14, 2026, Plaintiff filed these five discovery motions: (1) Motion to Compel Further Responses to Form Interrogatories – General (Set One); (2) Motion to Compel Further Responses to Form Interrogatories – Employment Law (Set One); (3) Motion to Compel Further Responses to Special Interrogatories (Set One); (4) Motion to Compel Further Responses to Requests for Production (Set One); and (5) Motion to Compel Further Responses to Requests for Admission (Set One).

Four of these motions were initially set to be heard on August 13, and the hearing was continued to August 14. One motion was initially set to be heard on August 14.

Defendant filed an opposition on July 31, 2026. Plaintiff filed replies on August 6.

No trial date has been set.

Legal Standard

"On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general."
(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given
“within 45 days of the service of the verified response, or any supplemental
verified response, or on or before any specific later date to which the
propounding party and the responding party have agreed in writing.” (Id.,
subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer
declaration and a separate statement or, in the discretion of the Court, a
“concise outline of the discovery request and each response in dispute.” (Id.,
subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall
impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)
against any party, person, or attorney who unsuccessfully makes or opposes a
motion to compel a further response to interrogatories, unless it finds that
the one subject to the sanction acted with substantial justification or that
other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“On receipt of a response to a demand for inspection, copying,
testing, or sampling, the demanding party may move for an order compelling
further response to the demand if the demanding party deems that any of the
following apply: (1) A statement of compliance with the demand is
incomplete. (2) A representation of
inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without
merit or too general.” (Code Civ. Proc.,
§ 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given
“within 45 days of the service of the verified response, or any supplemental
verified response, or on or before any specific later date to which the
propounding party and the responding party have agreed in writing.” (Id.,
subd. (c).)

A motion to compel further responses must set forth specific
facts showing good cause for the discovery and must be accompanied by a meet-and-confer
declaration and a separate statement or, in the discretion of the Court, a
“concise outline of the discovery request and each response in dispute.” (Id.,
subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive

response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

All five motions

are denied for two separate and independent reasons.

First, a party

moving to compel further responses to interrogatories, requests for production, or requests for admission must file, with the motion, a declaration establishing that the moving party has satisfied the statutory requirement to meet and confer as set forth in Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1) & § 2031.3010, subd. (b)(2) & § 2033.290, subd. (b)(1).)

Code of Civil

Procedure section 2016.040, as amended by the Legislature effective January 1, 2026, provides:

“A meet and

confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

(Code Civ.

Proc., § 2016.040, subd. (a).)

Plaintiff has

not satisfied this requirement. To the contrary, Plaintiff's only attempt to meet and confer following service of the responses at issue in June 2026 was a single letter.

(Toor Decls., ¶¶ 9-16 & Exh. C; Kim Decl., ¶ 15.)

On that basis

alone, the Court must deny all five motions.

Second, and

independently, while these motions were pending, Defendant served substantially more substantive supplemental responses.

The parties have not met and conferred with regard to whether the supplemental responses are code compliant. (See Kim Decl., ¶¶ 19-20 & Exh. F.)

The Court need not reach, and does not reach, the other arguments presented by the parties.

The Court expresses no views as to whether the supplemental responses served in July 2026 are code compliant.

As the motions have been denied, so too are Plaintiff's requests for sanctions.

Conclusion

The Court DENIES all five discovery motions filed by Plaintiff Emerson McGhee without prejudice.

Plaintiff's requests for sanctions are also denied.

Moving Party is ORDERED to give notice.